

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Joshua Stumpff) **Docket No. 2023- 161**
License No. 068.0134128)

Stipulation and Consent Order

Stipulation

NOW COMES the State of Vermont, by and through Prosecuting Attorney George Hasselback, and Respondent Joshua Stumpff, by and through his counsel Andrew Pappone, Esq., who hereby stipulate and agree as follows:

Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Stipulated Facts

2. Joshua Stumpff ("Respondent") of Montpelier, Vermont is licensed as a Licensed Clinical Mental Health Counselor ("LCMHC") under license number 068.0134128. This license was originally issued on January 11, 2019, and expires on January 31, 2025.
3. Respondent began to provide mental health counseling to a client (hereinafter identified as "Client") in September of 2018.
4. Respondent met with Client weekly, although there were periods of time where there were breaks in treatment.
5. At the beginning of the therapeutic relationship, Client informed Respondent that Client's family was "in crisis."
6. Respondent involved members of Client's immediate family in his counseling sessions, including Client's father ("Client's Father"), sister ("Client's Sister"), and mother ("Client's Mother").

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7. On at least two occasions, Respondent met with all four family members in a therapeutic setting.
8. On at least one occasion, Respondent met individually with Client's Father in a therapeutic setting.
9. On at least three occasions, Respondent met individually with Client's Mother in a therapeutic setting.
10. When Respondent met with Client's Mother alone, in a therapeutic setting, she discussed with Respondent her marital struggles with Client's Father, including telling him that theirs was a "rocky marriage" and that she had considered leaving her husband.
11. In the fall of 2018, Respondent began to encounter Client's family members socially.
12. Specifically, Respondent learned that his daughter and Client's Sister went to the same school and knew each other socially.
13. Respondent's daughter and Client's Sister began to spend the night at each other's respective houses.
14. Respondent began to communicate socially with Client's Mother regarding their daughters' friendship.
15. In the Spring of 2020, these communications between Respondent and Client's Mother turned "flirty."
16. Respondent's last therapeutic session with Client was on or about April 2, 2020.
17. In August of 2020, Respondent met Client's Mother in person and they kissed and fondled each other.
18. In the Summer of 2021, Respondent met Client's Mother again in person and they had sex.
19. Between the Summer of 2021, and the Summer of 2022, Respondent met with Client's Mother on two other occasions to have sex.
20. Respondent subsequently admitted to an OPR investigator that this sexual relationship with Client's Mother violated Vermont statutes relating to LCMHCs.
21. At no time during the sexual relationship with Client's Mother did Respondent mention this relationship to his clinical supervisor.

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22. Respondent purposefully did not mention this relationship to his clinical supervisor, because Respondent did not know whether the supervisor would report this behavior to the Office of Professional Regulation.
23. On February 11, 2021, Client contacted Respondent to ask whether Respondent could resume therapy with him.
24. On or about February 22, 2021, Respondent contacted Client and told him that he would not be able to fit Client into his schedule for counseling.
25. In March of 2023, Client learned of the sexual relationship between Respondent and his mother and sent a text message to Respondent regarding it.
26. In response, Respondent admitted that he "had an ethical trespass that had terrible consequences that hurt you and your whole family and betrayed your trust. There is no justification."
27. Eventually, Client's Mother and Client's Father divorced.
28. According to Client's Mother, the sexual relationship between her and Respondent was "a huge factor in the reasoning behind" this divorce.
29. Knowledge of Respondent's sexual relationship with his mother has "wrecked" Client's "trust in the mental health profession."
30. Client currently feels "like [he] could use a therapist but [he's] not sure if [he] can trust them."

Violation One: 26 V.S.A. § 3271(a)(4) Engaging in sexual conduct with a Client, or with the immediate family member of a Client, with whom the licensee has had a professional relationship with within the previous five years.

31. The State re-alleges and incorporates Paragraphs 2 through 30 above.
32. As a licensed LCMHC in the State of Vermont, Respondent is prohibited from engaging in a sexual relationship with the immediate family members of a client with whom Respondent has had a professional relationship with within the previous five years.
33. Paragraphs 2 through 30 demonstrate that Respondent engaged in a sexual relationship with Client's immediate family member (Client's Mother) within five years of having a professional relationship with him.
34. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct in violation of 26 V.S.A. § 3271(a)(4).

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Violation Two: 3 V.S.A. § 129a(a)(28) Engaging in conduct of a character likely to deceive, defraud, or harm the public.

35. The State re-alleges and incorporates Paragraphs 2 through 30 above.
36. As a licensed LCMHC in the State of Vermont, Respondent is required to refrain from engaging in conduct of a character likely to deceive, defraud, or harm the public.
37. Paragraphs 2 through 30 demonstrate that Respondent engaged in conduct of a character likely to harm the public in that he engaged in a sexual relationship with the mother of Client, who he had met during the treatment of that Client and had engaged with therapeutically during the treatment of that Client. This sexual relationship directly contributed to the divorce of Client's parents and caused Client to suffer emotional harm.
38. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because Respondent committed unprofessional conduct of a character likely to deceive, defraud, or harm the public in violation of 3 V.S.A. § 129a(a)(28).

Violation Three: 3 V.S.A. §129a(b)(2) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) Failure to conform to essential standards of acceptable and prevailing practice.

39. The State re-alleges and incorporates Paragraphs 2 through 30 above.
40. Vermont law requires a LCMHC to conform to the essential standards of acceptable and prevailing practice.
41. Rule 6.6 of the Administrative Rules of the Board of Allied Mental Health Practitioners provides that the American Counseling Association (ACA) Code of Ethics and Standards of Practice "establish[es] the standard of practice and fitness within the profession and [is] incorporated" into the Administrative Rules of the Board of Allied Mental Health Practitioners.
42. Essential standards of acceptable and prevailing practice for LCMHC in Vermont prohibit a LCMHC from engaging in sexual or romantic relationships with the immediate family members of former Clients within five (5) years of the end of the professional relationship. See ACA Code of Ethics, A.5.c. ("Sexual and/or romantic counselor- Client interactions or relationships with former Clients, their romantic partners, or their family members are prohibited for a period of 5 years following the last professional contact").
43. Paragraphs 2 through 30 demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice by having sex with Client's mother within five (5) years of the end of the professional relationship with Client.

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44. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

Violation Four: 3 V.S.A. §129a(a)(15) Failure to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

45. The State re-alleges and incorporates Paragraphs 2 through 30 above.
46. Vermont law requires a LCMHC to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.
47. Paragraphs 2 through 30 demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment was necessary to avoid action repugnant to the obligations of the profession by engaging in a sexual relationship with a person that he met through the therapeutic treatment of that person's immediate family member (their child), after learning through a clinical setting intimate details of that person's family life and marital troubles, and after establishing a relationship of trust with the members of that person and that person's family.
48. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(15).

Understandings

49. Respondent admits the facts above are true and the conditions below are necessary to protect the public.
50. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
51. Respondent specifically waives any claims that any disclosures made to the Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
52. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
53. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this Stipulation and Consent Order.

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- 54. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
- 55. Respondent voluntarily waives Respondent's right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
- 56. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **INDEFINITELY SUSPENDS** Respondent's license to practice as a LCMHC. Respondent must petition for reinstatement. No more than forty-five (45) days prior to requesting reinstatement, Respondent must, at their own cost:
 - 1. Obtain an independent mental health evaluation by a pre-approved licensed professional with more than ten (10) years' experience ("Independent Evaluator") who has verified receipt of this Stipulation and Consent Order. The evaluation report shall meet the independent evaluation requirements posted on OPR's website. The results of the Independent Evaluation must indicate that Respondent is fit to practice and does not present a risk to the safety, health, or welfare of Respondent's potential clients, as well as any recommendations that would ensure Respondent is safe to practice. The evaluation must be submitted to the Enforcement Unit Case Manager.
 - 2. If recommended by an Independent Evaluator, enter into a treating professional agreement and mental health treatment plan with a pre-approved treating professional and follow all recommendations.
 - 3. Successfully complete (i.e., receive a passing score, if applicable) ten (10) hours of pre-approved coursework on Ethics, Boundaries, and relationships with clients. The coursework must be pre-approved by the Enforcement Case Manager. Respondent shall submit the certificates of completion, completed assignment book(s) and quiz results, if applicable, to the Enforcement Case Manager. The coursework may not be counted toward any continuing education requirement of licensure.
 - 4. Respondent's petition for reinstatement must include a detailed personal statement written by Respondent that provides a full accounting of why they believe they engaged in the conduct described above, in particular the boundary transgressions, what steps they have taken to rehabilitate themselves, why adhering to ethical practice is essential in counseling practice, what steps and plan they believe will ensure that they will not engage in such conduct in the future. Respondent shall also submit documentation and letters of support with the petition.

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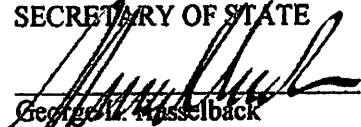
- B. If reinstated, Respondent's license SHALL BE CONDITIONED pursuant to whatever terms the Board finds reasonable at the time of Respondent's reinstatement request, taking into account the independent evaluation, the facts above, the personal statement and anything else the Board deems relevant at that time. Conditions may include treatment/counseling, additional/ongoing coursework, supervision, practice setting requirements limiting Respondent to practice only at a facility where supervision is available, limitations as to the number of hours per week Respondent may practice, and employer reports.
- C. Notwithstanding any provision above, Respondent must continue to meet all requirements to maintain licensure, for license renewal, and for license reinstatement.
- D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. § 129(a).
- E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be considered relative to any future disciplinary matter.
- F. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.

AGREED TO:

Dated: 12/4/2023

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SECRETARY OF STATE

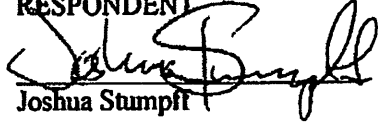
By:


George W. Messelback
State Prosecuting Attorney

Dated: 11/30/2023

RESPONDENT

By:


Joshua Stumpf

ATTORNEY FOR RESPONDENT

By:


Drew Pappone

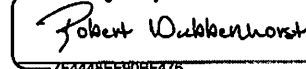
APPROVED AND SO ORDERED:

Dated: 12/21/23

Date of Entry: 12/21/23

DocuSigned by:

By:


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Chairperson

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